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Mullappilli Mana,
Kulayettikkara P O,
Ernakulam – 682317

17 March 2025

Annexure – B: Report of Investigation of Title in respect of immovable Property

1	a) Name of the Branch/ Business Unit/Office seeking opinion			State Bank of India, RACPC I, Ernakulam	
	b) Reference No. and date of the letter under the cover of which the documents tendered for scrutiny are forwarded.			NIL	
	c) Name of the Borrower			Smt. K K Suja	
2	a) Type of Loan			Home Loan – Takeover from Federal Bank	
	b) Type of property			Apartment with undivided share in land	
3	c) Name of the unit/concern/ company/person offering the property/ (ies) as security			Smt. K K Suja	
	d) Constitution of the unit/concern/ person/body/authority offering the property for creation of charge.			Individual	
	e) State as to under what capacity is security offered (whether as joint applicant or borrower or as guarantor, etc.)			Borrower	
4	Value of (Rs in Crores)				
5	Complete or full description of the immovable property/(ies) offered as security including the following details			1.161% undivided share in 40.47 ares of landed property	
	a) Survey No.			111/11A-2-2 & 111/11A-3	
	b) Door/House No. (in case of house property)			42/1199/A4 of Corporation of Kochi	
	c) Extent/ area including plinth/ built up area in case of house property			NA	
	d) Locations like name of the place, village, city, registration, sub-district etc.			Edappally South Village Edappally Sub District Ernakulam District.	
	Boundaries: (as per Location sketch)			East: North: West: South	Property of Civil Service Officers Housing Co-operative Society Limited & Property of Mary Shaji PWD Road Property of MemanaParambuEttup Property of V P Sonu, Antony & Sebastian
6	a) Particulars of the documents scrutinized-serially and chronologically.				
	b) Nature of documents verified and as to whether they are originals or certified copies or registration extracts duly certified. Note: Only originals or certified extracts from the registering/land/revenue/other authorities be examined				
	Sl No	Date	Name/Nature of the Document	Original/certified copy/certified extract/photocopy etc	In case of copies, whether the original was scrutinized by the Advocate
	1	30.03.2023	Sale Deed No.1532/23 of Edappally SRO	Copy	Original with Federal Bank

	2	22.11.2021	Master TIR submitted by Advocate Rekha Nair	Copy	NA
	3	04.03.2025	Basic Tax receipt No. KL07022403139/2025 of village office, Edappally South	Digital	NA
	4	25.11.2024	Property tax receipt No. R-C070100-24208106 Of Corporation of Kochi	Digital	NA
	5	06.03.2025	Possession Certificate No.495/25 of Edappally South village office	Original	NA
	6	05.03.2025	Encumbrance certificate No.3607/25 of Edappally SRO, for the period from 01.03.2010 to 04.03.2025	Digital	NA
	7	25.02.2021	Kerala Gazette containing Land Data Bank of Edappally South village	Digital	NA
	8	13.03.2025	Indemnity cum Affidavit sworn in by Smt. K K Suja	Original	NA
	9	01.07.2025	List of Documents held by Federal Bank	Copy	NA
7	a) Whether certified copy of all title documents are obtained from the relevant sub-registrar office and compared with the documents made available by the proposed mortgagor? (Please also enclose all such certified copies and relevant fee receipts along with the TIR) HL: if the value of loan is =/more than Rs 1 crore and in case of commercial loans irrespective of the loan component			NA	
	b) Whether all page in the certified copies of the title documents which are obtained directly from the Sub-registrar’s office have been verified page by page with the original document submitted? (in case original document is not produced for verifying with the certified or ordinary copies, the matter should be handled more diligently & cautiously)			NA	
8	a) Whether the records of registrar office or revenue authorities relevant to the property in question are available for verification through any online portal or computer system?			Full text not available online. Online search possible	
	b) If such online/computer records are available, whether any verification or cross checking are made and the comments/findings in this regard			Search made, and found correct	
	c) Whether the genuineness of the stamp paper is possible to be got verified from any online portal and if so whether such verification was made?			No	
	d) Whether proper registration of documents completed? Details thereof to be provided			Yes. Sale Deed No.1532/23	
9	a) Property offered as security falls within the jurisdiction of which sub-registrar office?			Edappally	
	b) Whether it is possible to have registration of documents in respect of the property in question, at more than one office of sub-registrar/district registrar/registrar general. If so, please name all such offices			NA	
	c) Whether search has been made at all the offices named at (b) above?			NA	
	d) Whether the searches in the offices of registering authorities or any other records reveal registration of multiple title documents in respect of the property in question?			No	
10	a. Chain of title tracing the title from the oldest title deed to the latest title deed establishing title of the property in question from the predecessors in title/interest to the current title holder.				
	“THE LANTERN”, a Project of Civil Service Officers Housing Co-Operative Society, is an approved Project of SBI. Prior documents and encumbrance certificate upto 2021 were verified by Panel Advocate and considered by the Bank at the time of Project approval. Civil Service Officers Housing Co-Operative Society Ltd, represented by its President Mr. Ben Mathew Varkey, executed Sale Deed No. 1532/23 dated 30.03.2023 of Edappally SRO in favour of Smt. Smt. K K Suja. 1.161% undivided share in 40.47 ares of land, made up of 36.41 ares in Survey No.111/11A-3 & 4.06				

	ares in Survey No.111/11A-2-2 of Edappally South Village, together with residential apartment bearing Door No. 42/1199/A4 of Corporation of Kochi, and together with a car park and right to use the common areas and common facilities in the building has been conveyed asper this deed. Now, Smt. K K Suja holds title and possession over 1.161% undivided share in 40.47 ares of land, made up of 36.41 ares in Survey No.111/11A-3 & 4.06 ares in Survey No.111/11A-2 of Edappally South Village, together with apartment bearing Door No. 42/1199/A4 of Corporation of Kochi. Original title deed is deposited with Federal Bank. SBI has to take over the original title deed from Federal Bank	
	b. Wherever Minor's interest or other clog on title is involved, search should be made for a further period, depending on the need for clearance of such clog on the Title. In case of property offered as security for loans of Rs 1.00 crore and above, search of title/encumbrance for a period not less than 30 years is mandatory (Separate sheets may be used)	NA
	c. Nature of minor's interest, if any, and if so, whether creation of mortgage could be possible, the modalities/procedure to be followed including court permission to be obtained and the reason for coming to such conclusion	No minor's interest
11.	a. Nature of Title of the intended Mortgagor over the Property (whether full ownership rights, Leasehold Rights, Occupancy/ Possessory Rights or In am Holder or Govt. Grantee/Allottee etc.)	Full ownership by way of Sale Deed
	If Ownership Rights,	
	a. Details of the Conveyance Documents	Sale Deed No.1532/23 of Edappally SRO
	b. Whether the document is properly stamped	Yes
	c. Whether the document is properly registered	Yes
	If leasehold, whether;	
	a) The Lease Deed is duly stamped and registered	NA
	b) The Lessee is permitted to mortgage the Leasehold right	NA
	c) Duration of lease/unexpired period of lease	NA
	d) If a sub-lease, check the lease deed in favour of Lessee as to whether Lease deed permits sub leasing and mortgage by sub-lessee also	NA
	e) Whether the leasehold rights permits for the creation of any superstructure (if applicable)?	NA
	f) Right to get renewal of the leasehold rights and nature thereof	NA
	If Govt grant/allotment/lease-cum/sale agreement/Occupancy/In am Holder/Allottee etc, Whether:	NA
	a. grant/agreement etc provides for alienable rights to the mortgagor with or without conditions	NA
	b. the mortgagor is competent to create charge on such property	NA
	c. any permission from Govt. or any other authority is required for creation of mortgage and if so, whether such valid permission is available	NA
	If occupancy right whether	NA
	a) such right is heritable and transferable	NA
	b) mortgage can be created	NA
12	Has the property has been transferred by way of Gift/Settlement deed:	No
	a) The Gift/Settlement deed is duly stamped and registered	NA
	b) The Gift/Settlement deed has been attested by two witnesses	NA
	c) Whether there is any restriction on the Donor in executing the gift/settlement deed in question	NA
	d) The Gift/Settlement deed transfers the property to the Done	NA

	e) Whether the Done has accepted the Gift by signing the Gift/Settlement deed or by a separated writing or by implication or by actions	NA
	f) Whether the Done is in possession of the gifted property	NA
	g) Whether any life interest is reserved for the Donor or any other person and whether there is a need for any other person to join the creation of mortgage	NA
	h) Any other aspect affecting the validity of the title passed through the gift/settlement deed	NA
13	Has the property been transferred by way of partition/family settlement deed	No
	a. whether original deed is available for deposit. If not, the modality/procedure to be followed to create valid and enforceable mortgage.	NA
	b. Whether mutation has been effected	NA
	c. Whether the mortgagor is in possession and enjoyment of his share	NA
	d. Whether the partition made is valid in Law and the mortgagor has acquired mortgageable title thereon	NA
	e. In respect of partition by a decree of court, whether such decree has become final and all other conditions/formalities are completed/complied with	NA
	f. Whether any of the documents in question are executed in counterparts or in more than one set? If so, additional precautions to be taken for avoiding multiple mortgages	NA
14	Whether the title documents include any testamentary documents/wills?	No
	a. In case of wills, whether the will is registered will or unregistered will?	NA
	b. Whether will in the matter needs a mandatory probate and if so whether the same is probated by a competent court?	NA
	c. Whether the property is mutated on the basis of will?	NA
	d. Whether the original will is available?	NA
	e. Whether the original death certificate of the testator is available?	NA
	f. What are the circumstances and/or documents to establish the will in question is the last and final will of the testator?	NA
15	g. Comments on the circumstances such as the availability of a declaration by all the beneficiaries about the genuineness/ validity of the will, all parties have acted upon the will, etc, which are relevant to rely on the will, availability of Mother/Original title deeds are to be explained.	NA
	Whether the property is subject to any wakf rights/ belongs to Church/Temple or any religious/other institutions	No
	(a) any restriction in creation of charges on such properties?	NA
16	(b) Precautions/permissions, if any in respect of the above cases for creation of mortgage?	NA
	(a) Where the property is a HUF/joint family property?	No
	(b) Whether mortgage is created for family benefit/legal necessity, whether the Major Coparceners have no objection/join in execution, minor's share if any, rights of female members etc.	NA
17	(c) Please also comment on any other aspect which may adversely affect the validity of security in such cases	NA
	(a) Whether the property belongs to any Trust or is subject to the rights of any trust?	No
	(b) Whether the trust is a private or public trust and whether trust deed specifically authorizes the mortgage of the property?	NA
	(c) If so, additional precautions/permissions to be obtained for creation of valid mortgage?	NA
	(d) Requirements, if any for creation of mortgage as per the central/state laws applicable to the trust in the matter.	NA

18	Is the property an Agricultural land	The property is classified as 'wet land' as per revenue records. Land Data Bank classifies it as 'converted land'. A Multi storied apartment building exists in the property. Indemnity cum Affidavit sworn in by Smt. K K Suja also obtained
	a) whether the local laws permit mortgage of agricultural land and whether there are any restrictions for creation/enforcement of mortgage	
	b) In case of agricultural property, other relevant records/documents as per local laws, if any are to be verified to ensure the validity of the title and right to enforce the mortgage?	
	c) In the case of conversion of Agricultural land for commercial purposes or otherwise, whether requisite procedure followed/permission obtained.	
19	a. Whether the property is affected by any local laws or other regulations having a bearing on the creation of security (viz. Agricultural Laws, Weaker Sections, Minorities, Land Laws, SEZ regulations, Costal Zone Regulations, Environmental Clearance, etc.)	Not affected by any local laws or regulations
	b. Additional aspects relevant for investigation title as per local laws	NA
20	(a) Whether the property is subject to any pending or proposed land acquisition proceedings?	There are no pending proposals for acquisition
	(b) Whether any search/enquiry is made with the Land Acquisition Office and the outcome of such search/enquiry.	No
21	(a) Whether the property is involved in or subject matter of any litigation which is pending or concluded?	There are/were no litigations
	(b) If so, whether such litigation would adversely affect the creation of a valid mortgage or have any implication of its future enforcement?	NA
	(c) Whether the title documents have any court seal/marketing which points out any litigation/ attachment/ security to court in respect of the property in question? In such case please comment on such seal/marketing.	No
22	(a) In case of partnership firm, whether the property belongs to the firm and the deed is properly registered	NA
	(b) Property belonging to partners, whether thrown on hotchpot? Whether formalities for the same have been completed as per applicable laws?	NA
	(c) Whether the person(s) creating mortgage has/have authority to create mortgage for and on behalf of the firm	NA
23	a. Whether the property belongs to Limited Company, check the Borrowing powers, Board resolution, authorization to create mortgage/execution of documents, Registration of any prior charges with the Company Registrar ROC), Articles of Association/provisions of common seal etc.	No
	b1. Whether property (to be mortgaged) is purchased by the above Company from any other Company or Limited Liability Partnership (LLP) firm ? Yes/No	NA
	b2. If yes, whether the search of charges of the property (to be mortgaged) has been carried out with Registrar of Companies (RoC) in respect of such vendor company/LLP (seller) and the vendee company (purchaser) ? out with	NA
	b3. Whether the above search of charges reveals any prior charges/encumbrances, on the property (proposed to be mortgaged) created by the vendor company (seller)?	NA
	b4. If the search reveals encumbrances/charges, whether such charges/encumbrances have been satisfied	NA
24	In case of Societies, Associations, the required authority/ power to borrower and whether the mortgage can be created and the requisite resolutions, bye - laws	NA
25	(a) Whether any POA is involved in the chain of title?	No
	(b) Whether the POA involved is one coupled with interest, ie. A Development Agreement cum Power of Attorney. If so, please clarify whether the same is a registered document and hence it has created an interest in favour of the builder/developer and as such is irrevocable as per law.	NA
	(c) In case the title document is executed by the POA holder, please clarify whether the POA involved is (i) one executed by the Builders viz. Companies/Firms/ Individual or	NA

	Proprietary Concerns in favour of their Partners/Employees/Authorised Representatives to sign Flat Allotment Letters, NOCs, Agreements of Sale, Sale Deeds, etc. in favour of buyers of flats/units (Builder's POA) or (ii) other type of POA (Common POA)	
	(d) In case of Builder's POA, whether a certified copy of POA is available and the same has been verified/ compared with the original POA.	NA
	(e) In case of Common POA (ie. POA other than Builder's POA), please clarify the following clauses in respect of POA.	NA
	i. Whether the original POA is verified and the title investigation is done on the basis of original POA? ii. Whether the POA is a registered one? iii. Whether the POA is a special or general one? iv. Whether the POA contains a specific authority for execution of title document in question?	NA NA NA NA
	(f) Whether the POA was in force and not revoked or had become invalid on the date of execution of the document in question? (Please clarify whether the same has been ascertained from the office of sub-registrar also?)	NA
	(g) Please comment on the genuineness of POA	NA
	(h) The unequivocal opinion on the enforceability and validity of the POA	NA
26	Whether mortgage is being created by a POA holder, check genuineness of the Power of Attorney and the extent of the powers given therein and whether the same is properly executed/stamped/authenticated in terms of the Law of the place, where it is executed	No
27	I. If the property is a flat/apartment or residential/commercial complex, check and comment on the following: a) Promoter's/land owner's title to the land/building b) Development agreement/Power of Attorney c) Extent of authority of the developer/builder d) Independent title verification of the land and/or building in question e) Agreement for sale (duly registered) f) Payment of proper stamp duty g) Requirement of registration of sale agreement, development agreement, POA etc. h) Approval of building plan, permission of appropriate/local authority etc. i) Conveyance in favour of the society/condominium concerned j) Occupancy certificate/allotment letter/letter of possession k) Membership details in the society etc l) Share certificates m) No objection letter from the society n) All legal requirements under the local/Municipal laws, regarding ownership of flats/apartments/building regulations, development control regulations, co operative societies Laws o) Requirements, for noting the Bank charges on the records of the Housing Society, if any p) If the property is a vacant land and the construction is yet to be made, approval of lay-out and other precautions, if any q) Whether the numbering pattern of the units/flats tally in all documents such as approved plan, agreement plan etc.	Though this is a flat, construction already completed and occupied
	II A. Whether the Real Estate Project comes under Real Estate (Regulation and Development) Act, 2016? Y/N	NA
	II B. Whether the project is registered with the Real Estate Regulatory Authority? If so, the details of such registration are to be furnished	NA
	II C. Whether the registered agreement for sale prescribed in the above Act/Rules thereunder is executed?	NA
	II D. Whether the details of the apartment/plot in question are verified with the list of number and types of or plots booked as uploaded by the promoter in the website of Real Estate Regulatory Authority?	NA
28	Encumbrances, Attachments and /or claims whether of the Government, Central or State or other local authorities or Third party	No encumbrances or Attachments

	claims, liens etc and details thereof.	
29	The period covered under the Encumbrances Certificate and the name of the person in whose favour the encumbrance is created and if so, satisfaction of the charge, if any	01.03.2010 to 04.03.2025 No Encumbrances outstanding on the property.
30	Details regarding property tax or land revenue or other statutory dues paid/payable as on the date and if not paid, what remedy	Land Tax for the year 2024-25 has been paid as per Basic Tax receipt No. KL07022403139/2025 dated 04.03.2025 and Property tax for the year 2024-25 is paid vide Receipt No. R-C070100-24208106 dated 25.11.2024
31	a) Urban land ceiling clearance, whether required and if so, details thereon b) Whether no objection certificate under the Income Tax Act is required/obtained	Not Required Not Required
32	a. Details of RTC extracts/mutation extracts/ Katha extracts pertaining to the property in question b. Whether the name of mortgagor is reflected as owner in the revenue/Municipal/Village records?	Since this is a flat and only an undivided share in land is transferred, mutation is not applicable Yes
33	(a) Whether the property offered as security is clearly demarcated? (b) Whether the demarcation/partition of the property is legally valid? (c) Whether the property has clear access as per documents? (The property should be legally accessible through normal carriers to transport goods to factories/houses, as the case may be)	Yes Yes Yes
34	a. Whether the property can be identified from the following documents, and discrepancy/doubtful circumstances, if any revealed on such scrutiny? (a) Document in relation to electricity connection (b) Document in relation to water connection (c) Document in relation to Sales Tax Registration, if any applicable (d) Other utility bills, if any b. Discrepancy/doubtful circumstances, if any revealed on such scrutiny	No No No No NA
35	Whether the documents, ie Valuation report/approved sanction plan reflect/indicate any difference/discrepancy in the boundaries in relation to the Title document/other document (If the valuation report and/or approved plan are not available at the time of preparation of TIR, please provide these comments subsequently on receipt of the same)	No
36	a. Whether the Bank will be able to enforce SARFESI Act, if required against the property offered as security? b. Property is SARFAESI compliant (Y/N)	Yes. The property is not an agricultural land and hence, the Bank will be able to enforce SARFAESI Act Yes
37	a. Whether original title deeds are available for creation of equitable mortgage b. In case of absence of original title deeds, details of legal and other requirements for creation of a proper, valid and enforceable mortgage by deposit of certified extracts duly certified etc, as also any precaution to be taken by the Bank in this regard	Original title deed is deposited with Federal Bank. SBI has to take over the original title deed from Federal Bank NA
38	Additional suggestions, if any to safeguard the interest of the Bank/ensuring the perfection of security.	NIL
39	The specific persons who are required to create mortgage/to deposit documents creating mortgage	Smt. K K Suja

Place: Ernakulam

Date: 17 March 2025

Signature of the Advocate

Annexure-C1 - Certificate of Title on the Basis of Certified copies of the Title Deeds

1. I have examined the copies of Original Title Deeds intended to be deposited relating to the schedule property/(ies) to be offered as security by way of Equitable Mortgage and that the copies of documents of title referred to in the Opinion are valid as secondary evidence of Right, title and Interest and that the said Equitable Mortgage to be created on production of original title deeds will satisfy the requirements of creation of Equitable Mortgage and I further certify that:
2. I have examined the copies of Documents in detail, taking into account all the Guidelines in the check list vide Annexure-B and the other relevant factors and undertake to re-examine the original title deeds as and when produced and
3. I confirm having made a search in the Land/ Revenue records. I also confirm having verified and checked the records of the relevant Government Offices/Sub-Registrar(s) Office(s), Revenue Records, Municipal/ Panchayath Office, Land Acquisition Office, Registrar of Companies Office, Wakf Board (wherever applicable). I do not find anything adverse which would prevent the Title Holders from creating a valid Mortgage. I am liable /responsible, if any loss is caused to the Bank due to negligence on my part or by my agent in making search.
4. Following scrutiny of Land Records/ Revenue Records and relative copies of Title Deeds, certified copies of such title deeds obtained from the concerned registrar office and encumbrance certificate (EC) I hereby certify the genuineness on the basis of the certified copies of the Title Deeds. Suspicious/ Doubt, if any, has been clarified by making necessary enquiries.
5. There are no prior Mortgage/ Charges/ encumbrances whatsoever, as could be seen from the Encumbrance Certificate for the period from 01.03.2010 to 04.03.2025 pertaining to the immovable Property/(ies) covered by above said copies Title Deeds. The property is free from all Encumbrances.
6. There are no mortgages/charges
7. There is no minor's interest.
8. The mortgage, if created, will be available to the Bank for the liability of the intending borrower, Smt. K K Suja.
9. I certify that Smt. K K Suja has an absolute, clear and Marketable title over the Schedule property/(ies). I further certify that the above title deed is genuine, a valid equitable mortgage could be created and the said Mortgage, if created, would be enforceable.
10. I certify that the deposit of following title deeds/documents would create a valid and enforceable mortgage

1. Sale Deed No.1532/23 dated 30.03.2023 of Edappally SRO (Original)
2. Master TIR dated 22.11.2021 submitted by Advocate Rekha Nair (Copy)
3. Indemnity cum Affidavit sworn in by Smt. K K Suja (Orginal)

Other documents to be accepted and to be kept along with the main documents

1. Basic Tax receipt No. KL07022403139/2025dated 04.03.2025 of village office, Edappally South (Digital)
2. Property tax receipt No. R-C070100-24208106 dated 25.11.2024 of Corporation of Kochi (Digital)
3. Possession Certificate No.495/25 dated 06.03.2025 of Edappally South village office (Original)
4. Encumbrance certificate No.3607/25 dated 05.03.2025 of Edappally SRO (Digital)
5. Kerala Gazette containing Land Data Bank of Edappally South village (Digital)
6. Up to date Encumbrance certificate from 05.03.2025 onwards (Original)
11. There are no legal impediments for creation of the Mortgage on production of original of title deeds the certified copies of which I have examined under any applicable Law/ Rules in force under any applicable Law/ Rules in force.
12. It is certified that the property is SARFAESI compliant

SCHEDULE OF THE PROPERTY/IES

District	Ernakulam
Sub District	Edappally
Taluk	Kanayanur
Village	Edappally South
Survey No.	111/11A-2-2 & 111/11A-3
Extent of Property	1.161% undivided share in 40.47 ares

1.161% undivided share in 40.47 ares of land, made up of 36.41 ares in Survey No.111/11A-3 & 4.06 ares in Survey No.111/11A-2 of Edappally South Village, together with apartment bearing Door No. 42/1199/A4 of Corporation of Kochi.

Boundaries	As per Sale Deed
East:	Property of Civil Service Officers Housing Co-operative Society Limited & Property of Mary Shaji
North:	PWD Road
West:	Property of MemanaParambuEttup
South:	Property of V P Sonu, Antony & Sebastian

Place: Ernakulam
Date: 17.03.2025

GEETHA. D,
Advocate